



Citation: Oram v. Aviva General Insurance, 2022 ONLAT 20-006962/AABS

Licence Appeal Tribunal File Number: 20-006962/AABS

In the matter of an Application pursuant to subsection 280(2) of the *Insurance Act*, RSO 1990, c I.8., in relation to statutory accident benefits.

Between:

David Oram

Applicant

and

Aviva General Insurance

Respondent

DECISION

ADJUDICATOR: **Avril A. Farlam, Vice Chair**

APPEARANCES:

For the Applicant: Nick de Koning, Counsel

For the Respondent: Savneet Multani, Counsel
 Bhavpreet Saini, Counsel

HEARD by Videoconference December 6, 2021

BACKGROUND

- [1] David Oram (“applicant”) was injured February 4, 2019 after exiting his automobile (“incident”). The applicant sought accident benefits pursuant to the *Statutory Accident Benefits Schedule - Effective September 1, 2010 (the “Schedule”)*.¹ Aviva General Insurance (“respondent”) initially paid but later denied accident benefits.
- [2] The applicant disagreed with the respondent’s decision and submitted an application to the Licence Appeal Tribunal – Automobile Accident Benefits Service (Tribunal).
- [3] At the case conference, the Tribunal ordered that the preliminary issue below be heard before the substantive issue below.
- [4] The respondent’s position is that the applicant was not involved in an “accident” within the meaning of s. 3(1) of the Schedule. The applicant’s position is the opposite.

PRELIMINARY ISSUE

- [5] The preliminary issue to be decided is:
 - i. Was the applicant involved in an “accident” as defined within s. 3(1) of the *Schedule*?

RESULT

- [6] The applicant’s injuries sustained as a result of the incident did not result from an “accident” as defined by the *Schedule*. The application is dismissed.

LAW

- [7] Section 3(1) of the *Schedule* defines “accident” as “an incident in which the use or operation of an automobile directly causes an impairment...”
- [8] The onus is on the applicant to establish on a balance of probabilities that the use or operation of an automobile directly caused the applicant’s injuries.²

¹ O.Reg. 34/10 as amended.

² *Scarlett v. Belair Insurance*, 2015 ONSC 3635 (Div. Ct.). I agree that Scarlett stands for the onus or burden being on the plaintiff to prove entitlement to benefits but I wonder if para 11 of Chisholm would be a better reference in this instance.

ANALYSIS

Was the incident an “accident”?

- [9] For the following reasons, I find that the applicant was not involved in an “accident” as defined within s. 3(1) of the *Schedule*.
- [10] The Ontario Court of Appeal established a two-part test to determine whether an incident is an “accident” as follows:³
- a. Purpose test: did the incident arise out of the use or operation of an automobile, and
 - b. Causation test: did the use or operation of an automobile directly cause the impairment.
- [11] If it can be established that the use or operation of an automobile was the cause of the injuries, then the applicant must establish that there was “no intervening act(s) that resulted in the injuries that cannot be said to be part of the course of the “ordinary course of things.”⁴ The question is whether it can be said that the use or operation of the automobile was a “direct cause” of the injuries.”⁵ Direct causation requires a determination of the “dominant factor that physically caused the applicant’s injuries”.⁶
- [12] The application of this test to the facts of this case follows.

Facts Not In Dispute

- [13] Counsel for both parties indicated that the basic facts are not in dispute. Specifically, it is agreed that the applicant was injured in the February 4, 2019 incident. At that time, the applicant in the course of his employment drove a commercial truck to a rental equipment business (“premises”), got out of his truck, left it running while he walked up to a building on the premises and then went back to his truck to retrieve a harness. After retrieving the harness from his truck, the applicant slipped and fell on ice on the ground at the premises. The applicant’s counsel filed the transcript of the applicant’s examination under oath

³ *Chisholm v. Liberty Mutual Insurance Group*, 2002 CanLII 45020 (ONCA); *Greenhalgh v. ING-Halifax Insurance Company*, 2004 CanLII 21045 (ONCA) at para 10; *Economical Mutual Insurance Company v. Caughy*, 2016 ONCA 226 (CanLII) at para 10.

⁴ *Greenhalgh v. ING-Halifax Insurance Company*, 2004 CanLII 21045 (ONCA) at para 36; *Economical Mutual Insurance Company v. Caughy*, 2016 ONCA 226 (CanLII) at para 14.

⁵ *Economical Mutual Insurance Company v. Caughy*, 2016 ONCA 226 (CanLII) at para 14.

⁶ *Porter v. Aviva Insurance Company of Canada*, 2021 ONSC 3107 (Div. Ct.) at para 16.

("EUO") taken November 20, 2020 and confirmed that he agreed to the facts described in the transcript.

- [14] The applicant testified at the EUO that "as I was walking back to the machine, I slipped....maybe five or ten feet away from the vehicle." The applicant confirmed he slipped on ice.
- [15] The applicant signed an incident and injury report on February 4, 2019 which was witnessed by the applicant's counsel in which he described that he "...was walking towards building, and I slipped on unsalted icy ground". As to the cause, the applicant wrote "failure to maintain premises by Battlefield Equipment Rentals". The ambulance call report records that the applicant was working in a construction yard when he slipped on the ice and had a fall from standing.
- [16] The testimony of the applicant at this hearing was consistent with these other statements. The applicant testified that when he was approximately eight to 15 feet from the truck, he fell because the grounds were icy and not taken care of. The applicant said had he not fallen, he would have loaded his truck and been on his way. Given that the applicant fell at least eight feet from the truck, there was no evidence put forward before me that the applicant struck any part of the truck with his body when he fell to the ground.
- [17] On these facts put forward by the applicant, I find that the incident is not an accident under s. 3(1) of the *Schedule*.

Did the applicant's injuries arise out of the use or operation of an automobile (the purpose test)?

- [18] The applicant submits that he was involved in an accident because he was injured while using and operating his employer's automobile to pick up machinery as directed by his employer.
- [19] The respondent does not concede that the purpose test is met.
- [20] I find that the purpose test is satisfied because the events which took place immediately prior to the slip and fall, including the applicant parking his employer's automobile in the parking lot of the business where he was directed to pick up machinery, are ordinary and well-known activities to which a vehicle is put.
- [21] The real issue here is whether the applicant's automobile was a direct cause of the applicant's injuries and therefore will address the balance of the test.

Did the use or operation of an automobile directly cause the applicant's injuries (the causation test)?

- [22] Within the causation test, a three-point analysis has been set out by the Ontario Court of Appeal:⁷
- i. whether the incident would have occurred “but for” the use or operation of the automobile;
 - ii. whether there was an intervening act that cannot be said to be part of the ordinary course of the use or operation of the automobile; and
 - iii. whether the use or operation of the automobile was the dominant feature.
- [23] The applicant submits that he meets the causation test, that the use or operation of an automobile directly caused the applicant's impairment and that there is no intervening act which broke the chain of causation. The applicant was still in the process of using his vehicle when he was injured. The applicant relies on various FSCO and previous decisions of the Tribunal including the *Duah*⁸. In *Duah* the applicant slipped and fell on ice while attempting to get keys out of a bag. The Tribunal found there could be more than one cause. The applicant submits there can be two causes of the incident.
- [24] The respondent submits that the applicant's automobile was not the direct cause of the applicant's injuries and, therefore, the incident was not an “accident” as that term is defined in s. 3(1) of the *Schedule*. The respondent submits that the applicant's injuries arose from the interaction of his body with the icy ground beneath his feet after he got out of the automobile, which constitutes a slip and fall, but not an “accident” as defined by the *Schedule* and that slipping on ice does not fall within the “ordinary course of things” or a normal risk of using or operating an automobile. Instead, the ice was an independent and intervening event which broke the chain of causation. As such, the dominant cause of the applicant's injuries was the intervening ice, not the use or operation of the vehicle.
- [25] I find that the dominant factor that caused the applicant's injuries was his slip and fall on the icy parking lot.

⁷ *Chisholm v. Liberty Mutual Insurance Group*, 2002 CanLII 45020 (ONCA); *Greenhalgh v. ING-Halifax Insurance Company*, 2004 CanLII 21045 (ONCA).

⁸ *Duah v. Wawanesa Mutual Insurance Company*, 2021 19-006610 (ON LAT) at para 21.

- [26] The fact that the applicant drove to and parked on icy premises in his employer's automobile and slipped on the ice after exiting the vehicle does not make the incident part of the ordinary course of the use or operation of the automobile. The applicant's ordinary and regular use of the automobile ended once he exited it. The automobile itself was not the cause of the injury. The applicant's body did not strike the vehicle as he fell.
- [27] The case law cited by the applicant is not helpful here. The *Duah* decision is not binding on me, was released prior to the Divisional Court's decision in *Porter* and I decline to follow it. Instead, I prefer to follow the reasoning of the Divisional Court in *Porter*. The dominant factor that physically caused the applicant's injuries must be determined and here, it was the icy driveway, as in *Porter*.
- [28] The case law cited by the applicant is not helpful here. The FSCO and Tribunal decisions are not binding on me, are specific to their facts, and I decline to follow them. The other cases cited by the applicant are factually different from this case in that here the applicant was neither in physical contact with the automobile at the time of injury nor had physical contact with the automobile that propelled him to an injury.

Would the alleged injuries have occurred "but for" the use or operation of the automobile?

- [29] Although the applicant submits that his injuries sustained in the incident would not have occurred but for his use or operation of the automobile just prior to the incident, I find that this submission is not determinative of causation.
- [30] The "but for" test does not conclusively establish legal causation, the cause that attracts legal liability.
- [31] As Laskin J.A. noted in *Chisholm*,⁹ the purpose of the "but for" test of causation is an exclusionary test which serves to "eliminate from consideration factually irrelevant causes. It screens out factors that made no difference to the outcome...the but for test does not conclusively establish legal causation." Here, the applicant being in her automobile just prior to the incident and being proximate to the automobile when allegedly injured is not determinative of causation. Legal entitlement to accident benefits "requires not just that the use or operation of the car be a cause of the injuries but that it be a direct cause."¹⁰

⁹*Supra* note 3 or 14 , para 25.

¹⁰*Ibid.*, para 26.

Was there an intervening cause?

- [32] I find that the applicant's injuries were not a consequence directly caused by the use or operation of the automobile but were caused by a later intervening cause, the fact that he slipped on ice on the ground. It was the ice that initiated the slip and fall that led to the applicant's injuries, not the use or operation of his automobile. The automobile was the means of transportation to the icy parking place and the automobile was physically near the ice but not the cause of the slip and fall. I find that the ice and the slip and fall caused the applicant's injuries, not his use or operation of his automobile.
- [33] The ice on the ground and the applicant's slip and fall constitute an independent intervening event which broke the chain of events which started with the applicant driving his automobile to the icy parking lot and ended with his slipping and falling after he exited the automobile and walked at least eight feet away from it. The ice and the resulting slip and fall occurred independent of the automobile's use or operation. The icy conditions in the parking lot and the applicant's consequent slip and fall caused the applicant's injuries, not the fact that his injuries occurred after the applicant exited his automobile.

Was the use or operation of the automobile a dominant feature of the applicant's injuries?

- [34] I find that the use or operation of the automobile was not the dominant feature of the applicant's injuries. The dominant feature of the applicant's injuries was the ice on the parking lot which caused him to slip and fall after he exited the automobile. The fact that the applicant left the automobile running with the keys in the ignition and intended to re-enter it and drive it away after it was loaded does not establish direct causation. The intention to continue to use the vehicle does not alter that fact that his injuries were caused when he slipped and fell on the ice.
- [35] As a result, I find that the incident does not meet the causation test of an "accident". This is the applicant's burden to prove and he has not done so.
- [36] Therefore, any impairments the applicant sustained as a result of the incident did not result from an "accident" as defined by section 3(1) in the *Schedule*.

ORDER

[37] For the reasons above, I find that the applicant's injuries sustained as a result of the incident did not result from an "accident" as defined by section 3(1) in the *Schedule*. The application is dismissed.

Released: January 26, 2022

Avril A. Farlam, Vice Chair